

Court No. - 45

Case :- CRIMINAL MISC. WRIT PETITION No. - 10977 of 2014

Petitioner :- Dinesh Kumar Gupta

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Shailesh Kumar Tripathi

Counsel for Respondent :- Govt. Advocate, Mahboob Ahmad

Hon'ble V.K. Shukla, J.

Hon'ble Shashi Kant, J.

Heard Learned counsel for the petitioner, learned A.G.A. and Shri R.S. Umrao, learned counsel for the complainant.

Petitioner has approached this Court for quashing of the FIR dated 18.6.2014 registered as Case Crime No.194 of 2014, under Section 135 of Electricity Act, P.S. Bhelupur, District Varanasi.

This Court has the occasion to peruse the First Information Report and perusal of First Information Report does disclose cognizable offence u/s 135 of Electricity Act, as such, no case is made out for quashing of the First Information Report.

Petitioner has submitted next that the offence is compoundable one. In view of this, this Court proceeds to direct that whatever remedy is available to petitioner under the Electricity Supply Code 2005, same can be invoked by him.

With this direction, the present petitioner is disposed of.

Order Date :- 3.7.2014

A. Pandey